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IN THE COURT OF APPEAL OF THE STATE OF
CALIFORNIA
FIRST APPELLATE DISTRICT
DIVISION THREE

APPELLATE CASE NO.: A173827
SUPERIOR COURT CASE NO.: CGC-21-594102
GARRETT L. WONG, TRIAL JUDGE PRESIDING

Franciscus Dylan Rosario
Plaintiff and Appellant (Self-Represented)

v.

Subhi Abdelhalim, et al.
dba SONOMA LIQUOR,
DOES 1-50

Defendants and Respondents

**APPELLANT'S NOTICE OF MOTION AND MOTION
TO
DISREGARD MATTERS OUTSIDE THE RECORD
IN RESPONDENT'S BRIEF, OR IN THE
ALTERNATIVE
TO STRIKE THOSE PORTIONS**

Memorandum of Points and Authorities;
Declaration of Franciscus Dylan Rosario;
Certificate of Electronic Format; proposed order filed separately

CONTENTS

Notice of Motion.....	3
MPA I. Introduction and Summary of Relief Requested	6
MPA II. Summary Matrix of Extra-Record Assertions to Be Disregarded.....	9
MPA III. Controlling Legal Standards for Disregarding Extra-Record Assertions	15
MPA IV. Argument.....	19
MPA V. Conclusion	26
Declaration of Franciscus Dylan Rosario	28
Certificate of Electronic Format.....	30
Proof of Service.....	31

NOTICE OF MOTION

[Cal. Rules of Court, rules 8.54, 8.204(a)(1)(B), 8.204(a)(1)(C), 8.204(e)]

To the Honorable Presiding Justice and Associate Justices of the Court of Appeal, First Appellate District, Division Three:

PLEASE TAKE NOTICE that, pursuant to California Rules of Court, rules 8.54, 8.204(a)(1)(C), and 8.204(e)(2)(C), Appellant Franciscus Dylan Rosario hereby moves this Court for an order directing that the identified extra-record facts, unrecorded sidebar characterizations, and speculative waiver theories in the **Respondent's Brief (RB)** filed by Defendant and Respondent Subhi

Abdelhalim, individually, and dba Sonoma Liquor, on August 3, 2026, be disregarded, or, in the alternative, for an order striking those identified passages under this Court's inherent power. (Advisory Com. com., Cal. Rules of Court, rule 8.204.) Appellant does not request that the Respondent's Brief be stricken in its entirety.

This Motion is made on the grounds that Respondent's Brief violates California Rules of Court, rule 8.204(a)(1)(C) by:

1. Asserting factual narratives, alleged party discussions, and purported agreements based entirely on unrecorded speculation unsupported by citations to the certified record;
2. Relying upon unreported sidebars and post-hoc judicial characterizations of unrecorded conferences to construct an "invited error" or "waiver" defense, where Appellant expressly contested those characterizations on the record and affirmatively invoked California Rules of Court, rule 8.137, to reconstruct the proceedings;
3. Mischaracterizing on-record objections regarding external juror research as affirmative consent to a categorical judicial refusal to instruct on governing statutory law; and
4. Asserting "no evidence" / "never requested" / "contained in CACI 705" (RB 10:15 to 10:21; 10:29 to 10:31) after citing AugCT Exh. A (09580112) and admitting "[t]he list

requested CACI 707" at RB 6:21 to 6:22. That is the record contradiction in Section II, item 3, not a labeling dispute.

This Motion is based upon this Notice of Motion, the attached Memorandum of Points and Authorities, the Declaration of Franciscus Dylan Rosario, Appellant's Supplemental Request for Judicial Notice [SRJN], the certified record on appeal, and the pleadings and records on file in this action.

Dated: August 20, 2026

Respectfully submitted,



/s/

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MEMORANDUM OF POINTS AND AUTHORITIES

I. INTRODUCTION AND SUMMARY OF RELIEF REQUESTED

Appellate review is strictly confined to the four corners of the certified record. (*In re Hochberg* (1970) 2 Cal.3d 870, 875; see also *Kendall v. Barker* (1988) 197 Cal.App.3d 619, 625.) Assertions *dehors* the record must be disregarded. (*Kendall, supra*, 197 Cal.App.3d at p. 625; *People v. Gayton* (1970) 10 Cal.App.3d 178, 181.) This District has held: "Such conduct is not to be condoned." (*Davenport v. Davenport* (2011) 194 Cal.App.4th 1507, 1531.) California Rules of Court, rule 8.204(a)(1)(C), mandates that every appellate brief must "[s]upport any reference to a matter in the record by a citation to the volume and page number of the record where the matter appears." When an opposing party violates this foundational rule by manufacturing factual assertions *dehors* the record, the reviewing court may (A) order the brief returned for corrections and refile within a specified time, (B) strike the brief with leave to file a new brief within a specified time, or (C) disregard the noncompliance. (Cal. Rules of Court, rule 8.204(e)(2).) Appellant asks this Court to disregard the identified passages under rule 8.204(e)(2)(C). In the alternative, Appellant asks this Court to strike those discrete passages under its inherent power. Subdivision (e)(2) "does not purport to limit the inherent power of the reviewing court to fashion other sanctions for such

noncompliance." (Advisory Com. com., Cal. Rules of Court, rule 8.204.) Appellant does not ask this Court to strike the Respondent's Brief in its entirety.

The party asserting invited error bears the affirmative burden of demonstrating an unequivocal, deliberate tactical choice on the certified record. (*Mary M. v. City of Los Angeles* (1991) 54 Cal.3d 202, 212.) Speculation of the form "it is just as likely" is legally incapable of meeting that burden. Trial court instructional rulings are automatically deemed excepted to as a matter of law (Code of Civil Procedure section 647; see Appellant's Supplemental Request for Judicial Notice [SRJN], Exh. E), and the trial court possesses a mandatory duty to inform the jury on points of law upon request (Code Civ. Proc., § 614; SRJN Exh. E). No objection was necessary to preserve this claim. (*Lund v. San Joaquin Valley Railroad* (2003) 31 Cal.4th 1, 7.)

In this appeal, the core substantive error involves the trial court's response to deliberating Jury Question #1. The deliberating jury explicitly identified Vehicle Code sections 22107 and 21804(a) and asked if it should consider and be instructed on those provisions. The trial court responded with a categorical dual prohibition, ordering that the jury "may not consider" those sections and "nor will the Court instruct," on the legally erroneous premise that enacted public statutes were "not permitted to consider that as evidence in the case, period." (RT 11, p. 7, ll. 23-27; p. 8, ll.

4-9.)

In response, Respondent's Brief does not defend the trial court's "not evidence" rationale, nor does it address Code of Civil Procedure section 614. Instead, Respondent constructs an invited-error and waiver defense built upon assertions of what allegedly occurred during *unrecorded and unreported sidebars*. Specifically, Respondent asks this Court:

1. To accept outright conjecture that it is "just as likely that the Court and parties discussed and agreed to the jury instructions as given" *dehors* the record (RB 10:29 to 10:31);
2. To treat post-hoc judicial characterizations of unrecorded discussions ("You've waived that request, sir," RT 11, p. 7, ll. 16-22; "acquiescence," RT 11, p. 11, ll. 14-19) as binding proof of party waiver (RB 8:8-16; 9:5-12; 11:6-11); and
3. To ignore Appellant's prompt, on-record objection to those judicial labels and Appellant's explicit invocation of California Rules of Court, rule 8.137, to reconstruct the unreported proceedings (RT 11, p. 11, l. 23 to p. 12, l. 13).

CACI 705 is Turning (Veh. Code, section 22107) (SRJN Exh. C); Respondent named CACI 705, 707, and 710 at RB 10:29 to 10:31; official 707 is Speed Limit (Veh. Code, section 22352) and official 710 is Duties of Care for Pedestrians and Drivers in Crosswalk (SRJN Exhs. D, I). Official CACI 401 and CACI 418 are SRJN

Exhibits G and H. That official text is before this Court, so RB 10:29 to 10:31 is not a record vacuum the panel must take on faith.

The 705-missing claim is answered in Section II, item 3. The 707-versus-705 label, if it exists at all, is a merits issue in the Reply. This motion asks the Court to disregard the extra-record "just as likely" sentence (RB 10:29 to 10:31) or, in the alternative, to strike that sentence under the Court's inherent power.

Respondent asks this Court to condone a practice that undermines appellate due process: utilizing an unrecorded sidebar gap to manufacture an intentional waiver of an instructional right that is automatically preserved by statute (Code of Civil Procedure section 647). Because these speculative assertions *dehors* the record violate Rule 8.204(a)(1)(C), Appellant moves that the identified passages be disregarded under rule 8.204(e)(2)(C) or, in the alternative, stricken under this Court's inherent power.

II. SUMMARY MATRIX OF EXTRA-RECORD ASSERTIONS TO BE DISREGARDED

Appellant moves that the following specific portions of Respondent's Brief be disregarded or, in the alternative, stricken under this Court's inherent power:

The "no evidence," "never requested," and "contained in CACI 705" sentences at RB 10:15 to 10:21, 10:29 to 10:31, 11:6 to 11:11, and 14:16 to 20 are the same contradiction as Section II,

item 3: they are contradicted by the proposed-instruction packet Respondent cites as AugCT, Exhibit A, Attachment A (Super. Ct. doc. 09580112), and by Respondent's own statement at RB 6:21 to 6:22 that "[t]he list requested CACI 707." The "just as likely ... agreed" sentence has no record citation.

1. RB 8:8-16

- **RB assertion:** There is no evidence in the record that at the time question #1 was raised and responded to Appellant made any objection or request for further instruction. In fact, the only evidence in the record is found in RT 11, which documents the discussion regarding jury question #3. At that time, Appellant made a motion for mistrial based on the jury's alleged consideration of these Vehicle Code sections. Far from requesting the jury be instructed on Vehicle Code section 22107, Appellant argued that any mention or potential consideration of these sections was grounds for mistrial. (RT, 11, 3:5-4:25.)
- **Record:** Mischaracterizes RT 11, pp. 3-4; ignores unrecorded sidebar conference and Rule 8.137 invocation. Violates CRC 8.204(a)(1)(C).

2. RB 9:5-12

- **RB assertion:** The court on page 10 noted Appellant

made no objection when the responses to Jury questions #1 or #2 were being determined. Despite this, the Court allowed Appellant to make a record of his objections related to the jury question #1 after the fact while responding to jury question #3. Appellant did not mention requesting a turning jury instruction, did not request the court instruct the jury related to Vehicle Code section 22107, and did not in any way object to the response made to the jury to not consider Vehicle Code section 22107.

- **Record:** Unilateral bench remarks cannot prove party waiver; ignores timely objection (RT 11, pp. 11-12). Violates CRC 8.204(a)(1)(C).

3. RB 10:15-21

- **RB assertion:** Further, it is undisputable that Appellant vehemently opposed giving any instruction on Vehicle Code section 22107, contained in CACI 705. Appellant moved for a mistrial when the jury even asked to be instructed on this code section. He admitted in open court that he agreed with the Court's refusal to instruct on Vehicle Code section 22107 and only now that he has lost at trial does he seek to argue that the failure to instruct was reversible error.

- **Record:** Conflates objection to juror external research with instructional waiver. Violates CRC 8.204(a)(1)(C). Also ignores the written CACI 707 / 710 request in AugCT, Exhibit A, Attachment A (09580112, pp. 7, 15, 17; see Reply App. II). The same packet requests the range CACI 700-710 (09580112, pp. 13, 18, 20; see Reply App. II). CACI 705 falls between 700 and 710, so requesting CACI 700-710 requests CACI 705. Respondent's use of "contained in CACI 705" as if that form was never requested is therefore incorrect on the face of 09580112.

4. **RB 10:29-31**

- **RB assertion:** There is no evidence in the record that Appellant requested CACI 705, 707, or 710 be given or that such a request was denied. It is just as likely that the Court and parties discussed and agreed to the jury instructions as given.
- **Record: Direct contradiction of designated record, plus extra-record speculation.** Respondent's own brief cites AugCT, Exhibit A, Attachment A (Super. Ct. doc. 09580112) and states: "The list requested CACI 707." (RB 6:21 to 6:22; see also RB 10:23 to 10:24.) That packet records email submission on March 31, 2025, and resubmission on April 21, 2025

(09580112, p. 1; see Reply App. II); lists CACI 707 by number (p. 7); lists CACI 710 by number (pp. 15, 17); and lists the range CACI 700-710 (pp. 13, 18, 20). Same record contradiction as Section II, item 3 (09580112 range 700-710 includes CACI 705; see Reply App. II). Official titles of 705 / 707 / 710 are SRJN Exhs. C, D. The "just as likely ... agreed" sentence has zero volume/page cite. CRC 8.204(a)(1)(C); *Estate of Teed; Tiburon; Gayton*.

5. RB 11:6-11

- **RB assertion:** Every argument made by Appellant at the Superior Court level was seeking to prevent the jury from considering Vehicle Code section 22107, by seeking a mistrial for the jury even potentially considering them and by failing to list in substance or in number a jury instruction related to turning. Appellant did not request any jury instruction contemplating turning or CACI 705. Accordingly, he has waived any instructional error on appeal.
- **Record: Direct misrepresentation of record.** RB 10:29 to 10:31 is *contra* AugCT, Exhibit A, Attachment A (09580112; see Reply App. II) and *contra* RB 6:21 to 6:22. The packet lists CACI 707 by number (09580112, p. 7), CACI 710 by number (pp. 15, 17), and the

range CACI 700-710 (pp. 13, 18, 20), and Defense Exh. 500 numbered Vehicle Code sections 22107 and 21804(a) (CT 1, p. 44; see Reply App. I). Whether a 707-versus-705 label is a clerical defect is a Reply merits issue; it is not a record vacuum. Violates CRC 8.204(a)(1)(C); Rules Prof. Conduct, rule 3.3(a)(1).

6. RB 13:25-28

- **RB assertion:** Further, when confronted with a jury question regarding if they should consider Vehicle Code section 22107, Appellant agreed that the jury should not be so instructed and moved for a mistrial on the grounds that the jury even considered applying Vehicle Code 22107.
- **Record:** False characterization of RT 11, p. 5, ll. 8 to 25. Appellant's on-record remarks were confined to preventing unsupervised juror research into uninstructed external texts; they were not consent to a judicial refusal to declare governing statutory law under Code of Civil Procedure section 614. (RT 11, p. 5, ll. 8 to 10, 15 to 25.) RB 10:29 to 10:31 is *contra* AugCT, Exhibit A, Attachment A (09580112; see Reply App. II) and *contra* RB 6:21 to 6:22. Violates CRC 8.204(a)(1)(C).

7. RB 14:16-20

- **RB assertion:** After losing at trial, Appellant now tries to rewrite history and allege instructional error for the failure to give a jury instruction that was never requested. Appellant has waived this issue on appeal given the failure to request a turning instruction or to request giving an instruction related to Vehicle Code 22107 at any point in time prior to this appeal.
- **Record: Direct misrepresentation of record.** RB 10:29 to 10:31 is *contra* AugCT, Exhibit A, Attachment A (09580112; see Reply App. II) and *contra* RB 6:21 to 6:22. The written request exists in the augmented record Respondent cites (09580112; CT 1, p. 44; see Reply App. I). "Never requested" is not a fact the panel may take from a sentence *dehors* the record at RB 10:29 to 10:31. Violates CRC 8.204(a)(1)(C).

III. CONTROLLING LEGAL STANDARDS FOR DIS-REGARDING EXTRA-RECORD ASSERTIONS

The California Rules of Court strictly regulate factual assertions in appellate briefs:

- **Rule 8.204(a)(1)(C):** Every brief must "[s]upport any reference to a matter in the record by a citation to the volume and page number of the record where the matter appears."
- **Rule 8.204(a)(1)(B):** Every brief must "[s]tate each point

under a separate heading or subheading summarizing the point, and support each point by argument and, if possible, by citation of authority."

- **Rule 8.204(e)(2):** If a filed brief fails to comply, the reviewing court may (A) order the brief returned for corrections and refile within a specified time, (B) strike the brief with leave to file a new brief within a specified time, or (C) disregard the noncompliance. Subdivision (e)(2)(B) addresses the brief as a whole; it is not a partial-strike provision.

This District has held: "Such conduct is not to be condoned." (*Davenport, supra*, 194 Cal.App.4th at p. 1531.) California Rules of Court, rule 8.204(a)(2)(C) provides that an appellant's opening brief shall "[p]rovide a summary of the significant facts" (*Ibid.*) Rule 8.204(a)(1)(C) imposes the same record-citation duty on a respondent's brief. This District has separately held that an unsupported assertion is "a blatant attempt to throw the burden on respondent and this court to disprove the naked claim that the Board, and the trial court, acted without proper support." (*Tiburon Open Space Committee v. County of Marin* (2022) 78 Cal.App.5th 700 [slip opn. at p. 92].) A respondent's extra-record "just as likely" claim dumps the same burden on Appellant and this Court.

This District has held that extra-record facts must be totally disregarded:

"Accordingly, we are compelled to follow the time-honored rule that on appellate review, this court cannot consider matters outside the record before it. We must therefore totally disregard assertions of fact urged in defendant's brief for the first time." (*People v. Gayton* (1970) 10 Cal.App.3d 178, 181.)

The same total disregard applies to extra-record assertions in the Respondent's Brief. (See also *Weller v. Chavarria* (1965) 233 Cal.App.2d 234, 246; *Hom v. Clark* (1963) 221 Cal.App.2d 622, 647.)

This District has exercised the power to strike a nonconforming brief "pursuant to rule 18 of the California Rules of Court" and to "disregard defects." (*Berger v. Godden* (1985) 163 Cal.App.3d 1113, 1116.) Former Rule 18 is now rule 8.204(e). Rule 8.204(e)(2)(C) is the current disregard authority invoked as the primary relief here. Rule 8.204(e)(2)(B) authorizes striking the brief as a whole, with leave to file a new brief within a specified time; it is not a partial-strike provision. Appellant does not ask this Court to strike the Respondent's Brief in its entirety. Any request to strike the identified passages rests on this Court's inherent power. (Advisory Com. com., Cal. Rules of Court, rule 8.204 [subdivision (e)(2) "does not purport to limit the inherent power of the reviewing court to fashion other sanctions for such noncompliance"].)

Factual assertions lacking record citations must be disregarded. "It is the duty of counsel to refer the reviewing court to the portion of the record which supports appellant's [or respondent's] contentions. It is not the proper function of Court of Appeal to search the record for error or to find support for ... factual assertions." (*Guthrey v. State of California* (1998) 63 Cal.App.4th 1108, 1115.)

Where a party asserts facts regarding events that allegedly transpired outside the presence of the court reporter, the appellate court cannot consider them:

"Statements of alleged fact in the briefs which are outside the record will be disregarded." (*Kendall v. Barker* (1988) 197 Cal.App.3d 619, 625; see also *Pulver v. Avco Financial Services* (1986) 182 Cal.App.3d 622, 632 ["We cannot consider matters not included in the record on appeal, and where a brief mentions such matters they will be disregarded."].)

Reviewing courts decide appeals based solely upon the recorded evidence, not upon a party's speculation as to what "just as likely" occurred off the record. (*In re Hochberg, supra*, 2 Cal.3d at p. 875; *Estate of Teed* (1952) 112 Cal.App.2d 638, 644.)

Where Respondent asserts invited error or waiver as an affirmative bar to review, the burden rests squarely on Respondent to

demonstrate an unequivocal, on-record, deliberate tactical choice. (*Mary M.*, *supra*, 54 Cal.3d at p. 212; *Huffman v. Interstate Brands Corp.* (2004) 121 Cal.App.4th 679, 706; *People v. Cooper* (1991) 53 Cal.3d 771, 831.) Code of Civil Procedure section 647 independently deems an order giving, refusing, or modifying an instruction excepted to as a matter of law. (See SRJN Exh. E.) No objection was necessary to preserve this claim. (*Lund*, *supra*, 31 Cal.4th at p. 7.)

Where a respondent asserts an affirmative procedural bar such as waiver or invited error without supporting citations to the record, the respondent fails to carry their burden and forfeits the defense as a matter of law. (*Nwosu v. Uba* (2004) 122 Cal.App.4th 1229, 1246; *City of Lincoln v. Barringer* (2002) 102 Cal.App.4th 1211, 1239.)

IV. ARGUMENT

A. Respondent Expressly Concedes Non-Compliance by Asserting Speculation in Lieu of Record Citations (RB 10:29-31)

At page 10, lines 29 through 31, Respondent asserts:

"There is no evidence in the record that Appellant requested CACI 705, 707, or 710 be given or that such a request was denied. It is just as likely that the Court and parties discussed and agreed to the jury instructions as given." (RB 10:29-31;

emphasis added.)

The first sentence is *contra* AugCT, Exhibit A, Attachment A (09580112) and *contra* RB 6:21 to 6:22. AugCT, Exhibit A, Attachment A (Super. Ct. doc. 09580112, p. 1) records that the court received Plaintiff's proposed instructions by email on March 31, 2025, and that they were resubmitted on April 21, 2025. The list requested CACI 707 by number (09580112, p. 7), CACI 710 by number (pp. 15, 17), and the range CACI 700-710 (pp. 13, 18, 20). Respondent said so at RB 6:21 to 6:22. As shown in Section II, item 3, the "no evidence" sentence is false on the face of 09580112. The "just as likely" sentence at RB 10:29 to 10:31 remains *dehors* the record, with no citation. Official CACI titles are noticed in SRJN Exhs. C and D; they are not a substitute for the request packet. The 707-versus-705 label, if any, is a Reply merits issue.

This passage is a facially conclusive admission of a Rule 8.204(a)(1)(C) violation. Respondent provides no volume, page, or line number for this alleged "discussion and agreement" because **none exists in the certified record**. CRC 8.204(a)(1)(C) is therefore violated. (Section III.)

Speculation is not proof. (*Teed, supra*, 112 Cal.App.2d at p. 644; Section III.) The extra-record sentence at RB 10:29 to 10:31 is an attempt to "throw the burden on respondent and this court to disprove the naked claim." (*Tiburon Open Space Committee v.*

County of Marin, supra, 78 Cal.App.5th 700 [slip opn. at p. 92].) A respondent's extra-record "just as likely" claim dumps the same burden on Appellant and this Court. This Court "cannot consider matters outside the record before it" and "must therefore totally disregard assertions of fact urged in defendant's brief for the first time." (*People v. Gayton, supra*, 10 Cal.App.3d at p. 181.) The same total disregard applies to the Respondent's Brief.

Respondent failed the *Mary M.* burden to demonstrate an unequivocal, on-record, deliberate tactical choice, and forfeited the waiver defense. (*Nwosu, supra*, 122 Cal.App.4th at p. 1246; Section III.) RB 10:29-31 must be disregarded under Rule 8.204(e)(2)(C) or, in the alternative, stricken under this Court's inherent power.

B. Respondent Cannot Convert an Unrecorded Sidebar Gap into Affirmative Waiver Over Statutory Exceptions (CCP section 647) and Rule 8.137 Objections (RB 8:8-16, 9:5-12, 11:6-11)

In Sections III.C and IV.A of the Respondent's Brief, Respondent repeatedly asserts that Appellant "waived" instructional errors during off-the-record proceedings, relying on the trial court's retrospective bench remarks (RB 8:8-16; 9:5-12; 11:6-11). This argument violates California appellate law in three respects:

1. Code of Civil Procedure Section 647 Deems Instructional Rulings Automatically Excepted To as a Matter of Law

Under Code of Civil Procedure section 647, the trial court's order giving, modifying, or refusing an instruction to the deliberating jury is deemed automatically excepted to. (Section III; see SRJN Exh. E.) "A party may, however, challenge on appeal an erroneous instruction without objecting at trial." (*Lund v. San Joaquin Valley Railroad* (2003) 31 Cal.4th 1, 7.) That automatic exception covers the trial court's answer to Jury Question #1 (giving, refusing, or modifying an instruction). Transcript silence cannot manufacture a waiver of that ruling, and it cannot convert a section 614 request for law into invited error. (*Lund, supra*, 31 Cal.4th at p. 7; Code Civ. Proc., sections 614, 647; SRJN Exh. E.)

2. A Trial Court's Unilateral Post-Hoc Remark Is Not Party Acquiescence

Respondent cites the trial court's statements ("You've waived that request, sir," RT 11, p. 7, ll. 16-22; "acquiescence," RT 11, p. 11, ll. 14-19) as factual proof that Appellant waived his rights. A unilateral bench remark is not waiver *in haec verba*. (*City of Ukiah v. Fones* (1966) 64 Cal.2d 104, 107 to 108.) A reviewing court "must accept and is bound by the record before it," "cannot properly consider matters not in the record," and "will disregard statements of alleged facts in the briefs on appeal which are not contained in the record." (*Weller v. Chavarria, supra*, 233 Cal.App.2d at p. 246; see also *Hom v. Clark, supra*,

221 Cal.App.2d at p. 647.)

3. Respondent Cannot Exploit a Record Gap Created by the Trial Court's Denial of Rule 8.137 Reconstruction

The conference regarding Jury Questions #1 and #2 was conducted off the record. When proceedings resumed on the record, Appellant promptly contested the trial court's characterization and **affirmatively invoked California Rules of Court, rule 8.137**, requesting a settled statement and on-record reconstruction of what transpired. (RT 11, p. 11, l. 23 to p. 12, l. 13.) The trial court refused and truncated the colloquy. (RT 11, p. 12, l. 14 to p. 14, l. 9.)

An appellate respondent is legally precluded from exploiting a transcript silence created by a trial court's refusal to settle the record:

"A party cannot be penalized on appeal for the lack of a verbatim record where the omission was caused by the court's failure to maintain or reconstruct an adequate record." (*In re Armstrong* (1981) 126 Cal.App.3d 565, 574; see also *People v. Gzikowski* (1982) 32 Cal.3d 580, 585, fn. 2.)

Respondent's assertions that Appellant failed to object or waived objections off the record rely entirely on extra-record proceedings and directly violate Rule 8.204(a)(1)(C).

C. Respondent Distorts On-Record Objections Regarding External Research into an Instructional Waiver (RB 10:15-21, 13:25-28, 14:16-20)

Respondent further violates Rule 8.204(a)(1)(C) by distorting the on-record colloquy at RT 11, pages 4 and 5. At RB 10:15-21 and RB 13:25-28, Respondent asserts that Appellant "vehemently opposed giving any instruction on Vehicle Code section 22107" and "agreed that the jury should not be so instructed."

The certified Reporter's Transcript demonstrates the contrary:

"MR. ROSARIO: No. I have objection to the fact they were accessing or requesting all of them anyways. But in number one, you know, I understand what's going on here. They should not have been accessing external information or requesting Vehicle Code sections that were not presented during the trial in view of the evidence." (RT 11, p. 5, ll. 18 to 25; see RB 8:22-26.)

The record establishes that Appellant was addressing an apparent **juror misconduct issue**, specifically, that the jury was consulting outside statutes. Treating a misconduct objection as instructional waiver is a *non sequitur*. The RT 11 colloquy is not consent *in haec verba* to the dual prohibition. (See SRJN Exh. E.) The "contained in CACI 705" premise at RB 10:15 to 10:21 is the same record contradiction already identified in Section II, item 3.

The doctrine of invited error requires affirmative conduct demonstrating a deliberate tactical choice. (*Huffman, supra*, 121 Cal.App.4th at pp. 705 to 706; *Cooper, supra*, 53 Cal.3d at p. 831; Section III.) It cannot be predicated on conflating misconduct objections with an instructional waiver. The assertions at RB 10:15-21, 13:25-28, and 14:16-20 misrepresent the record and must be disregarded under Rule 8.204(e)(2)(C) or, in the alternative, stricken under this Court's inherent power.

D. Formal Disregard, or in the Alternative Striking, Is Necessary to Preserve Record Integrity and Prevent Prejudicial Calendar-Memo Anchoring

While appellate courts occasionally defer nonconformity challenges to the merits, an immediate order disregarding these passages is warranted here under Rule 8.204(e)(2)(C). Rule 8.204(e)(2)(C) authorizes this Court to disregard extra-record assertions in the Respondent's Brief under the same "totally disregard" rule applied to facts urged "in defendant's brief for the first time." (*People v. Gayton, supra*, 10 Cal.App.3d at p. 181; see also *Berger v. Godden, supra*, 163 Cal.App.3d at p. 1116 [former Rule 18, now rule 8.204(e), strike-or-disregard power].) In the alternative, this Court may strike the identified passages under its inherent power. (Advisory Com. com., Cal. Rules of Court, rule 8.204.) Appellant does not ask this Court to strike the Respondent's Brief in its entirety.

Respondent's invited-error defense rests entirely on extra-record

fiction and explicit speculation ("just as likely," RB 10:30-31). This motion prevents extra-record sentences from being treated as record facts on first read. Clarifying that these passages are disregarded ensures this appeal is adjudicated strictly on the certified record. Appellant will address the substantive merits in the Appellant's Reply Brief, but this motion is necessary to ensure the record before this Court remains confined to certified proceedings.

V. CONCLUSION

For the foregoing reasons, Appellant Franciscus Dylan Rosario respectfully requests that this Court issue an order directing that the specified portions of Respondent's Brief (RB 8:8-16; 9:5-12; 10:15-21; 10:29-31; 11:6-11; 13:25-28; 14:16-20) be disregarded in the determination of this appeal pursuant to California Rules of Court, rule 8.204(e)(2)(C), or, in the alternative, striking those identified passages under this Court's inherent power. (Advisory Com. com., Cal. Rules of Court, rule 8.204; see *Berger v. Godden*, *supra*, 163 Cal.App.3d at p. 1116.) Appellant does not request that the Respondent's Brief be stricken in its entirety.

Dated: August 20, 2026

Respectfully submitted,



/s/
Franciscus Dylan Rosario

Plaintiff and Appellant in Pro Per
7624 Melody
ROHNERT PARK, CA 94928
P: 650.488.7510 / E: SOLTRINOX@GMAIL.COM

DECLARATION OF FRANCISCUS DYLAN ROSARIO

I, Franciscus Dylan Rosario, declare as follows:

1. I am the Plaintiff and Appellant in pro per in Court of Appeal Case No. A173827 (*Rosario v. Abdelhalim, et al.*), appealing from the judgment entered in San Francisco County Superior Court Case No. CGC-21-594102. I have personal knowledge of the facts set forth herein and, if called as a witness, could and would competently testify thereto.
2. On August 3, 2026, Defendant and Respondent Subhi Abdelhalim, individually, and dba Sonoma Liquor, filed and served the Respondent's Brief (RB) in this Court.
3. I have reviewed Respondent's Brief and verified the specific page and line references identified in Section II of the accompanying Memorandum of Points and Authorities against the certified Clerk's Transcript and Reporter's Transcript on file with this Court.
4. I submitted the proposed-instruction packet received March 31, 2025, and resubmitted April 21, 2025 (09580112, p. 1); it lists CACI 707 by number (p. 7), CACI 710 by number (pp. 15, 17), and the range 700-710 (pp. 13, 18, 20), which includes CACI 705 because 705 falls between 700 and 710.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed this 20th day of August, 2026, at Rohnert Park, California.



/s/

Franciscus Dylan Rosario

Declarant / Appellant in Pro Per

7624 Melody

ROHNERT PARK, CA 94928

P: 650.488.7510 / E: SOLTRINOX@GMAIL.COM

CERTIFICATE OF ELECTRONIC FORMAT

[Cal. Rules of Court, rules 8.74, 8.54]

I, Franciscus Dylan Rosario, Plaintiff and Appellant in propria persona, certify:

This motion was prepared on letter-size paper in a 14-point proportionally spaced typeface, at 1.5 line spacing, with left and right margins of at least 1.5 inches and top and bottom margins of at least 1 inch. Pagination is consecutive Arabic beginning with the cover as page 1. The electronic file contains bookmarks to each heading. This motion does not include an attachment under California Rules of Court, rule 8.204(d).

I certify that this motion complies with California Rules of Court, rules 8.74 and 8.54.

Dated: August 20, 2026



/s/

Franciscus Dylan Rosario
Plaintiff and Appellant in Pro Per
7624 Melody
ROHNERT PARK, CA 94928
P: 650.488.7510 / E: SOLTRINOX@GMAIL.COM

PROOF OF SERVICE

I, Franciscus Dylan Rosario, declare:

I am the Plaintiff and Appellant in this action, appearing in propria persona (self-represented). I am over the age of 18 years. My residence address is:

7624 Melody

ROHNERT PARK, CA 94928

On August 20, 2026, I served the foregoing document described as:

APPELLANT'S NOTICE OF MOTION AND MOTION TO DISREGARD MATTERS OUTSIDE THE RECORD IN RESPONDENT'S BRIEF, OR IN THE ALTERNATIVE TO STRIKE THOSE PORTIONS; MEMORANDUM OF POINTS AND AUTHORITIES; DECLARATION OF FRANCISCUS DYLAN ROSARIO; CERTIFICATE OF ELECTRONIC FORMAT

The proposed order is filed concurrently as a separate document.

on the interested parties in this action as follows:

BY ELECTRONIC SERVICE (TRUEFILING):

Pursuant to California Rules of Court, rules 8.71 and 8.78, I caused the document to be electronically served through TrueFiling to

the following registered counsel:

Rebekah A. Morrissey, Esq.

KOYAMA & COSTELLO

P.O. Box 24508

Oakland, CA 94623-1508

Attorneys for Defendant and Respondent Subhi Abdelhalim, individually, and dba Sonoma Liquor

**BY FIRST CLASS MAIL (SUPERIOR COURT CLERK,
CRC 8.212(c)(1)):**

I placed a true copy thereof enclosed in a sealed envelope with postage thereon fully prepaid in the United States mail at Rohnert Park, California, addressed as follows:

Clerk of the Court

San Francisco County Superior Court

400 McAllister Street

San Francisco, CA 94102

(for delivery to Hon. Garrett L. Wong)

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on August 20, 2026, at Rohnert Park, California.



/s/

Franciscus Dylan Rosario

Declarant / Appellant in Pro Per

7624 Melody

ROHNERT PARK, CA 94928

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